



Higher Education Provider Guidelines 2012

made under section 238–10 of the

Higher Education Support Act 2003

Compilation No. 8

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Prepared by the Department of Education, Skills and Employment, Canberra

About this compilation

This compilation

This is a compilation of the *Higher Education Provider Guidelines 2012* that shows the text of the law as amended and in force on 24 December 2021 (the **compilation date**).

The notes at the end of this compilation (the **endnotes**) include information about amending laws and the amendment history of provisions of the compiled law.

Uncommenced amendments

The effect of uncommenced amendments is not shown in the text of the compiled law. Any uncommenced amendments affecting the law are accessible on the Legislation Register (www.legislation.gov.au). The details of amendments made up to, but not commenced at, the compilation date are underlined in the endnotes. For more information on any uncommenced amendments, see the series page on the Legislation Register for the compiled law.

Application, saving and transitional provisions for provisions and amendments

If the operation of a provision or amendment of the compiled law is affected by an application, saving or transitional provision that is not included in this compilation, details are included in the endnotes.

Editorial changes

For more information about any editorial changes made in this compilation, see the endnotes.

Modifications

If the compiled law is modified by another law, the compiled law operates as modified but the modification does not amend the text of the law. Accordingly, this compilation does not show the text of the compiled law as modified. For more information on any modifications, see the series page on the Legislation Register for the compiled law.

Self-repealing provisions

If a provision of the compiled law has been repealed in accordance with a provision of the law, details are included in the endnotes.

Commonwealth of Australia
Higher Education Support Act 2003
HIGHER EDUCATION PROVIDER GUIDELINES 2012

(i) CITATION

These Guidelines may be cited as the *Higher Education Provider Guidelines 2012*.

(ii) AUTHORITY

These Guidelines are made pursuant to item 6 of the table in section 238-10 of the *Higher Education Support Act 2003* (the Act).

(iv) TRANSITIONAL ARRANGEMENTS

The revocation of the Former Guidelines does not affect the validity of a payment or decision made under those guidelines. A decision made under the Former Guidelines is taken to continue to have effect as if it were made under the *Higher Education Provider Guidelines 2012*.

COMMONWEALTH OF AUSTRALIA

Higher Education Support Act 2003

HIGHER EDUCATION PROVIDER GUIDELINES

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CHAPTER 1 INTRODUCTION

1.5 INTERPRETATION

1.5.1 Unless the contrary intention appears, the terms within these Guidelines have the same meaning as in the Act.

1.5.5 Terms in these Guidelines that are in *italics* have the meanings given in paragraph 1.5.10 of these Guidelines.

1.5.10 In these Guidelines, unless the contrary intention appears:

academic matters includes those matters which relate to student progress, assessment, curriculum and awards in a course of study.

accounting standards has the same meaning as in the *Corporations Act 2001*.

Act means the *Higher Education Support Act 2003*.

Budget and Other Measures Act means the *Higher Education Legislation Amendment (2006 Budget and Other Measures) Act 2006*.

Business Day means, in relation to the doing of an action in a place, any day other than a Saturday, Sunday or public holiday in that place.

Department means the department that administers these Guidelines.

Guidelines means these Higher Education Provider Guidelines 2012.

General Manager means the person holding, occupying or performing the duties of the position of General Manager or an equivalent position in the *Department* responsible for the administration of access to Commonwealth supported places, HECS-HELP and FEE-HELP assistance.

non-academic matters includes those matters which do not relate to student progress, assessment, curriculum and awards in a course of study and includes complaints in relation to personal information that the provider holds in relation to the student, and about the administration of the Commonwealth Scholarships Program.

Registered higher education provider has the same meaning given by the *TEQSA Act*.

saved determination has the meaning given to it under item 13(1) or item 14(1), as the context requires, of Schedule 3 of the *Budget and Other Measures Act*.

student cohort has the meaning given to it under the *Act* before the definition was repealed under item 10 of the *Budget and Other Measures Act*.

TEQSA Act means the *Tertiary Education Quality and Standards Agency Act 2011*.

victimise means to act or omit to act towards a person in a way which is intended to cause disadvantage to that person because they have made a complaint, or may make a complaint, or may be or are the subject of a complaint.

CHAPTER 2 THE TUITION PROTECTION REQUIREMENTS

2.1 Purpose and application

2.1.1 The purpose of this chapter is to set out the tuition protection requirements for the purposes of section 16-30 of the Act. The tuition protection requirements are the requirements set out in Part 5-1A of the Act and these Guidelines.

Note: The Minister must be satisfied that a body will meet the tuition protection requirements (if applicable) in order to be approved as a higher education provider under paragraph 16-25(1)(c) of the Act.

2.1.5 For the purposes of paragraph 166-5(1)(b) of the Act, Part 5-1A of the Act does not apply to a provider if the provider is:

(a) owned by the Commonwealth, a State or a Territory; or

(b) established under one of the following:

(i) the *Technical and Further Education Commission Act 1990* (NSW);

(ii) the *Education and Training Reform Act 2006* (Vic.);

(iii) the *TAFE Queensland Act 2013* (Qld);

(iv) the *Vocational Education and Training Act 1996* (WA);

(v) the *TAFE SA Act 2012* (SA);

(vi) the *Training and Workforce Development Act 2013* (Tas.);

(vii) the *Canberra Institute of Technology Act 1987* (ACT).

2.5 HELP tuition protection levy

2.5.1 This section is made for the purposes of subsection 19-66A(3) of the Act in relation to the collection or recovery of the HELP tuition protection levy.

Notice of amount of HELP tuition protection levy

2.5.5 For the purposes of paragraphs 19-66A(3)(a) and (b) of the Act, the Higher Education Tuition Protection Director must give a written notice to each higher education provider who is liable to pay the HELP tuition protection levy, which specifies:

(a) the year to which the levy relates;

(b) the amount of each component of the provider's levy;

(c) the total amount of the provider's levy;

(d) an explanation of how each component of the provider's levy was calculated;

(e) the day by which the levy is due and payable by the provider, which must be at least 30 days after the day the notice is given; and

(f) the method or methods by which the provider must pay the levy.

2.5.10 A failure to give a higher education provider the notice under paragraph 2.5.5 does not affect the liability of the provider to pay the HELP tuition protection levy.

Note 1: HELP tuition protection levy is imposed, for a year, on a higher education provider to whom Part 5-1A of the Act applies but does not include a provider covered by subsection 5(1A) of the Higher Education Support (HELP Tuition Protection Levy) Act 2020.

Note 2: Paragraph 19-66A(2)(a) of the Act requires a higher education provider to pay the HELP tuition protection levy when it is due and payable.

2.5.15 A notice under paragraph 2.5.5 does not need to be given if the liability to pay the HELP tuition protection levy is waived under paragraph 2.5.30 or paragraph 2.5.35.

Overdue notice

2.5.20 For the purposes of paragraph 19-66A(3)(a) of the Act, the Higher Education Tuition Protection Director may give a written overdue notice to the higher education provider to comply with a notice issued under paragraph 2.5.5 after the date the HELP tuition protection levy is due and payable.

2.5.25 The overdue notice must specify:

- (a) the amount that is still owing;
- (b) information about consequences of the late payment; and
- (c) the day the amount must be paid by the higher education provider.

Waiver

2.5.30 For the purposes of paragraph 19-66A(3)(f) of the Act, liability to pay the HELP tuition protection levy is waived for all higher education providers for the calendar year 2020.

2.5.31 For the purposes of paragraph 19-66A(3)(f) of the Act, liability to pay the HELP tuition protection levy is waived for all higher education providers for the calendar year 2021.

2.5.35 Liability to pay the HELP tuition protection levy is waived if:

- (a) the provider's approval is revoked under the Act;
 - (b) the provider's registration is cancelled under the TEQSA Act; or
 - (c) the provider is no longer in operation
- prior to the time the Higher Education Tuition Protection Director issues a notice under paragraph 2.5.5.

Internal review of notice issued under paragraph 2.5.5

2.5.40 For the purposes of paragraph 19-66A(3)(g) of the Act, a higher education provider may request the Higher Education Tuition Protection Director to reconsider a notice issued under paragraph 2.5.5 in relation to the determination of any components of the HELP tuition protection levy (**decision**).

2.5.45 The higher education provider's request must be in writing and given to the Higher Education Tuition Protection Director within 14 days after the day on which the provider received the notice.

2.5.50 After receiving the request, the Higher Education Tuition Protection Director must reconsider the decision and:

- (a) confirm the decision;
- (b) vary the decision; or
- (c) set the decision aside and substitute a new decision.

2.5.55 The Higher Education Tuition Protection Director must give the higher education provider written notice of the Director's decision (**internal review decision**) under paragraph 2.5.50.

2.5.60 The notice under paragraph 2.5.55:

- (a) must be given within 7 days after the internal review decision is made;
- (b) must contain a statement of the reasons for the internal review decision; and
- (c) if subparagraph 2.5.50(b) or (c) applies, include a new notice under paragraph 2.5.5 with a due date at least 30 days after the date the provider is notified of the internal review decision.

Administrative Appeals Tribunal review

2.5.65 For the purposes of paragraph 19-66A(3)(g) of the Act, an application may be made to the Administrative Appeals Tribunal for the review of a decision that has been confirmed, varied or set aside under paragraph 2.5.50.

2.10 When a higher education provider defaults in relation to a student

2.10.1 For the purposes of subsection 166-10(3) of the Act, a higher education provider defaults in relation to a student if the following circumstances apply in relation to the provider and the student:

- (a) the student is enrolled in a course of study with that provider and is not enrolled in any units of study within that course; and
- (b) the provider fails to commence the course on the day the course was scheduled to start or ceases to provide the course on a day after the course starts but before it is completed.

2.15 Notifying the Higher Education Tuition Protection Director of the details of the default

Additional details of default

2.15.1 For the purposes of paragraph 166-15(3)(b) of the Act, the written notice given to the Higher Education Tuition Protection Director under subsection 166-15(3) of the Act must specify for each student in relation to each unit of study and course of study that the student was enrolled in at the time of the default:

- (a) the student's residential address, phone number and email address;
- (b) whether the student was studying part-time or full-time;
- (c) the mode of delivery of each unit or course and if the student did not study online, the location (campus, suburb and postcode) where each unit or course was primarily delivered;
- (d) unit and course description outlines, including outlines for completed units;
- (e) whether the student has withdrawn from the course and the date of withdrawal;
- (f) whether the student has deferred from any units or the course, the date of the deferral and the date the student is expected to re-commence study;
- (g) the unit of study status and unit completion date for each unit, including whether the status is withdrawn, ongoing, passed or failed;
- (h) any work integrated learning and internship requirements for each unit;

- (i) information about any scholarship arrangements or any payment arrangements made for the student by a third party for the student's tuition fees; and
- (j) the total of other fees that are not tuition fees paid for the student for the unit or course received by the provider.

Requirements of notice

2.15.5 For the purposes of subsection 166-15(5) of the Act, the notice given to the Higher Education Tuition Protection Director under subsection 166-15(2) of the Act must include information about the number of students in relation to whom the higher education provider has defaulted.

2.15.10 The information required under subsection 166-15(3) of the Act must be given to the Higher Education Tuition Protection Director in a manner and form approved by the Director.

2.20 Requirements of notice to student

2.20.1 For the purposes of subsection 166-20(3) of the Act, the higher education provider must specify in its written notice of default to students in relation to whom it has defaulted:

- (a) the name of the course of study and units of study that the student was enrolled in at the time of the default;
- (b) the date of the default;
- (c) a copy of the student's transcript for units already completed;
- (d) evidence of any amounts of up-front payments received; and
- (e) details of where to get information from the responsible Australian Government Department about tuition protection.

2.20.5 The higher education provider must send the notice in one of the following ways:

- (a) to the student's personal email address as advised by the student;
- (b) to the student's postal address as advised by the student; or
- (c) to the student by another method agreed to by the student.

2.25 Providers to notify of outcome of discharge of obligations

2.25.1 For the purposes of subsection 166-26A(3) of the Act, the higher education provider must include in its written notice to the Higher Education Tuition Protection Director:

- (a) if the provider arranged a replacement unit or replacement course —evidence of the arrangement between the student and replacement provider, including any payment arrangements relating to tuition fees.

2.30 Payments in connection with tuition protection

2.30.1 For the purposes of paragraph 167-10(1)(a) of the Act, if a student accepts an offer of a replacement unit or replacement course, the Higher Education Tuition Protection Director may make payment of such amounts that the Director considers appropriate to:

(a) the replacement provider; or

(b) another person in order to facilitate a student's placement in a replacement unit or replacement course.

2.30.5 In deciding whether to make a payment, and the amount of such a payment, the Higher Education Tuition Protection Director:

(a) must have regard to the sustainability of the Higher Education Tuition Protection Fund; and

(b) may have regard to any other matters the Director considers relevant.

2.40 Other tuition protection requirements – special circumstances

HECS-HELP assistance

2.40.1 For the purposes of subsection 36-20(4) of the Act, if the higher education provider determines that section 36-20 of the Act applies to a person and the person enrolled in the unit as a replacement unit, the defaulting provider must:

(a) pay the person an amount equal to the payment, or the sum of the payments, that the person made in relation to their student contribution amount for the affected unit; and

(b) pay to the Commonwealth an amount equal to any HECS-HELP assistance to which the person was entitled to for the affected unit.

2.40.5 If the defaulting provider is unable to act for the purposes of subparagraph 2.40.1(a), the Higher Education Tuition Protection Director must pay the person an amount equal to the payment, or the sum of the payments, that the person made in relation to their student contribution amount for the affected unit.

2.40.10 If paragraph 2.40.5 applies, the defaulting provider must pay the Commonwealth for the purposes of the Higher Education Tuition Protection Fund an amount equal to the amount that the Higher Education Tuition Protection Director paid in relation to the person under paragraph 2.40.5.

FEE-HELP assistance

2.40.15 For the purposes of subsection 110-5(1B) of the Act, if the circumstances at subsection 110-5(1A) of the Act apply, then the defaulting provider must pay to the Commonwealth an amount equal to any FEE-HELP assistance to which the person was entitled to for the affected unit which the replacement unit replaces.

2.40.20 For the purposes of section 2.40, **defaulting provider** means a higher education provider which defaulted in relation to the person and the affected unit which the replacement unit replaces.

CHAPTER 3 HIGHER EDUCATION PROVIDER APPLICATION FEE

3.1 Purpose

3.1.1 The purpose of this chapter is to set out the application fee for a body corporate's application to be approved as a higher education provider.

3.2 Higher education provider application fee

3.2.1 For the purposes of paragraph 16-40(2)(c) of the *Act*, the fee is set out in the table below.

Litter Act 1979

<u>YearPortfolio:</u>	<u>FeeMinister for the Environment (The Department of Water and Environmental Regulation is the agency principally assisting the Minister for Environment in the administration of this Act)</u>
<u>2020Agency:</u>	<u>\$12,818K</u> Keep Australia Beautiful Council (W.A.)
<u>2021</u>	<u>\$13,010</u>
<u>2022</u>	<u>\$13,231</u>
<u>2023</u>	<u>\$13,456</u>
<u>2024</u>	<u>\$13,698</u>

CHAPTER 4 GRIEVANCE AND REVIEW PROCEDURES

4.1 PURPOSE

4.1.1 The purpose of this chapter is:

- (a) to ensure that all higher education providers other than those listed on Table A of the Act have a grievance procedure in place to ensure effective and fair handling of complaints about both *academic* and *non-academic matters*. (See paragraphs 19-45(1)(a) and (b) and subsection 19-45(2) of the Act.); and
- (b) to set out procedures that review officers must follow when reviewing reviewable decisions of higher education providers under Chapter 3 of the Act. (See subsection 19-45(4) of the Act.)

4.5 REQUIREMENTS FOR GRIEVANCE PROCEDURES

4.5.1 A higher education provider other than a Table A provider must have a grievance procedure to deal with complaints:

- (a) from the provider's students, and from persons seeking to enrol in courses of study with the provider, relating to *non-academic matters*; and
- (b) from the provider's students, relating to *academic matters*.

4.5.5 These grievance procedures must contain the following elements:

- (a) an arrangement for handling complaints which is easily accessible to students; is without charge, or at reasonable cost to students; and encourages timely resolution; and
- (b) an arrangement for the internal investigation of complaints which remain unresolved by the process outlined at (a) by an independent and impartial senior officer of the provider nominated by the provider, or dedicated complaints committee or unit established by the provider; and
- (c) a provision for external review of decisions made under paragraph (b) by an independent person or body established or nominated by the higher education provider.

4.5.10 The higher education provider must:

- (a) have a mechanism in place to implement the grievance procedures, including implementation of recommendations arising from any external review under paragraph 4.5.5(c);
- (b) ensure that the grievance procedures are complete, unambiguous and agreed to and ratified by the provider's governing body;
- (c) not *victimise* or discriminate against any complainant or respondent;
- (d) make details of the grievance procedures publicly available;
- (e) communicate the grievance procedures in writing to its staff and train its staff in their application;
- (f) specify reasonable timelines for responses to each stage of the process;
- (g) allow the complainant and/or respondent to be accompanied and assisted by a third party if desired;

- (h) give reasons and full explanation in writing for decisions and actions taken as part of the procedures, if requested by the complainant and/or respondent;
- (i) keep appropriate records of all grievances for at least five years, and allow parties to the complaint appropriate access to these records;
- (j) ensure that such records are treated as confidential.

4.5.15 Students or persons seeking to enrol in course of study with a provider are entitled to access the grievance procedures as set out by that provider, regardless of the location of the campus at which the grievance has arisen, the student's place of residence or the mode in which they study.

4.5.20 The procedures set out in the grievance procedures document do not replace or modify procedures or any other responsibilities which may arise under other higher education provider policies or under statute or any other law.

4.10 REQUIREMENTS FOR REVIEWING DECISIONS OF A HIGHER EDUCATION PROVIDER IN RELATION TO ASSISTANCE UNDER CHAPTER 3 OF THE ACT

4.10.1 In reviewing *reviewable decisions* made under Chapter 3 of the *Act*, providers must comply with the requirements of this section 4.10 and of Division 209 of the *Act*.

4.10.5 The higher education provider must acknowledge receipt of an application for review of a reviewable decision in writing and inform the applicant that, if the reviewer has not advised the applicant of a decision within 45 days of receiving the application for review, the reviewer is taken to have confirmed the original decision.

4.10.10 The reviewer of a reviewable decision must inform applicants of their right to apply to the Administrative Appeals Tribunal for a review of the reviewable decision that has been confirmed, varied or set aside under section 209-5 or 209-10 of the *Act*, and provide the contact details of the closest Administrative Appeals Registry and the approximate costs of lodging an appeal with the Administrative Appeals Tribunal.

CHAPTER 5 PUBLICATION AND OTHER REQUIREMENTS FOR STUDENT CONTRIBUTION AMOUNTS AND TUITION FEES

5.1 PURPOSE

5.1.1 The purpose of this chapter is to specify the:

- (a) periods under subsections 19-87(1), 19-90(1) and 19-95(1) of the Act;
- (b) date by which a higher education provider must publish the schedule of student contribution amounts for places and tuition fees for a particular period under paragraph 19-95(2)(b) of the Act;
- (c) matters to which a provider must not have regard when setting student contribution amounts or tuition fees under subsections 19-87(2A) and 19-90(3) of the Act;
- (d) date before which a variation to a:
 - (i) student contribution amount must be made under subparagraph 19-87(3)(a)(i) of the Act; and
 - (ii) tuition fee must be made under subparagraph 19-90(4)(a)(i) of the Act;
- (e) circumstances in which a:
 - (i) student contribution amount may be varied under subparagraph 19-87(3)(a)(ii) of the Act; and
 - (ii) tuition fee may be varied under subparagraph 19-90(4)(a)(ii) of the Act;
- (f) date by which information on student contribution amounts for places in units, or tuition fees, to apply to students in student cohorts must be published and made publicly available under subsection 19-97(2) of the Act before section 19-97 of the Act was repealed by item 6 of Schedule 3 of the *Budget and Other Measures Act*;
- (g) date before which a higher education provider may revoke a *saved determination* under item 13(4) or item 14(4), as the context requires, of Schedule 3 of the *Budget and Other Measures Act*; and
- (h) circumstances in which a higher education provider may revoke a *saved determination* under item 13(4) or item 14(4), as the context requires, of Schedule 3 of the *Budget and Other Measures Act*.
- (i) the form in which a higher education provider must give the Minister a schedule of student contribution amounts for places and tuition fees under paragraph 19-95(1)(a) to the Act

5.5 PERIOD

5.5.1 For the purposes of subsections 19-87(1), 19-90(1) and 19-95(1) of the Act, the period commences on the earliest enrolment date for the unit of study as determined by the higher education provider and ends on the completion date for the unit of study as determined by the higher education provider.

5.5.5 The periods specified in paragraph 5.5.1 of these guidelines are relevant only for the purposes of subsections 19-87(1), 19-90(1) and 19-95(1) of the Act and paragraph 5.10.1 of these guidelines.

5.10 DATE BY WHICH, AND MANNER IN WHICH, A HIGHER EDUCATION PROVIDER MUST PUBLISH THE SCHEDULE OF STUDENT CONTRIBUTION AMOUNTS FOR PLACES AND TUITION FEES FOR A PARTICULAR PERIOD

5.10.1 In accordance with paragraph 19-95(2)(b), a higher education provider must publish a schedule of student contribution amounts for places and tuition fees on the higher education provider's website on or before the earliest enrolment date for the unit of study as determined by the higher education provider.

5.15 MATTERS TO WHICH A PROVIDER MUST NOT HAVE REGARD WHEN DETERMINING MORE THAN ONE STUDENT CONTRIBUTION AMOUNT OR TUITION FEE

5.15.1 When determining a student contribution amount under subsection 19-87(2) or a tuition fee under subsection 19-90(2) of the Act for a unit, a higher education provider must not have regard to any matter related to the manner or timing of:

- (a) any student's payment of the student contribution amount or tuition fee to the provider;
or
- (b) the Commonwealth's payment to the provider:
 - (i) of any amount lent to any student in discharge of the student's liability to pay the student contribution amount or tuition fee; or
 - (ii) of any HECS-HELP discount for the unit.

5.25 VARYING A STUDENT CONTRIBUTION AMOUNT OR TUITION FEE

5.25.1 For the purposes of paragraph 19-87(3)(a) and paragraph 19-90(4)(a) of the Act, a higher education provider may only vary a published student contribution amount or tuition fee if the variation occurs prior to the published census date for the unit of study, and:

- (a) the variation does not disadvantage a student enrolled, or a person seeking to enrol;
and
- (b) the variation is necessary to correct the published student contribution amount or tuition fee due to administrative error or circumstances that did not apply at the time the student contribution amount or tuition fee was determined.

5.25.5 Without limiting the generality of paragraph 5.25.1(a) of these Guidelines, a student will be disadvantaged by a variation that increases the student contribution amount or tuition fee.

5.25.10 In relation to replacement schedules under subsection 19-95(3) to the Act, the method by which a higher education provider must withdraw the previous schedule, inform the Minister of the variation and give the Minister a replacement schedule incorporating the variation is by publishing the replacement schedule on the higher education provider's website as soon as practicable after making that decision.

5.30 DATE BY WHICH STUDENT COHORT INFORMATION MUST BE PUBLISHED

5.30.1 For any *saved determination* that has not been revoked under item 13(4) or item 14(4) of Schedule 3 of the *Budget and Other Measures Act*, sufficient information to enable a person in a *student cohort* to work out his or her student contribution amount and tuition fee for each unit of study that the provider provides or is to provide as part of the cohort's course of study, and any conditions that are to apply in relation to the student contribution amount or tuition fee for each unit of study for each cohort, must be published and made publicly available by 1 October in the year immediately preceding the year in which the *student cohort* commences its course of study.

5.35 DATE BEFORE WHICH A SAVED DETERMINATION MAY BE REVOKED

5.35.1 A higher education provider may revoke a *saved determination* only if the provider has advised the *Department*, in writing, of its intention to revoke the *saved determination* and may only do so before the earlier of:

- (a) two months before the date of commencement of the next unit of study to which the *saved determination* would otherwise apply (the "**next unit**"); and
- (b) two months before the latest date on which a student can enrol in the next unit without incurring a late enrolment fee for the unit.

5.40 THE FORM IN WHICH A HIGHER EDUCATION PROVIDER MUST GIVE THE MINISTER A SCHEDULE OF STUDENT CONTRBUTION AMOUNTS FOR PLACES AND TUITION FEES

5.40.1 For the purposes of paragraph 19-95(1)(a) and paragraph 19-95(1)(b) to the Act, a higher education provider gives the Minister a schedule of student contribution amounts for places and tuition fees by publishing the schedule on the higher education provider's website.

CHAPTER 6 FEES IN RESPECT OF OVERSEAS STUDENTS

6.1 PURPOSE

6.1.1 The purpose of this chapter is to detail the requirements for fees in respect of overseas students which are the fees referred to in paragraph 19-102(3)(d) of the Act.

6.5 REQUIREMENTS

6.5.1 Subject to paragraph 6.10 of these guidelines when determining the fee for an overseas student, a higher education provider must meet the following requirements in respect of all overseas students other than those students excluded under paragraph 6.10.1:

- (a) a higher education provider must charge as a minimum, a fee sufficient to recover the full cost of providing a course to an overseas student. Without limiting the meaning of full cost, it includes:
- (i) full operating costs, including equipment costs. Account should be taken not only of directly associated staff costs, but also all overheads (including but not limited to, utilities, rent and marketing costs) and common services costs (including but not limited to, libraries and the provision of services required under the National Code of Practice for Registration Authorities and Providers of Education and Training to Overseas Students and the Education Services for Overseas Students Act 2000); and
 - (ii) full capital costs. For fee calculation purposes, the current average cost per place of providing capital facilities for the course in question should be determined by the higher education provider. A capital component of the fee will not need to be taken into account where the necessary capital facilities are provided by a third party.
- (b) The fee must be no less than those shown for the relevant category of courses in the schedule of minimum indicative course fees, which forms part of these guidelines, except where:
- (i) a course is provided wholly off-shore and students will not at any stage enter Australia for study; or
 - (ii) approval has been given by the *Department* to charge less than the minimum indicative fee for a course.
- (c) Where the requirements of subparagraph 6.5.1(b)(i) or subparagraph 6.5(b)(ii) are satisfied in relation to a course no minimum indicative fee will apply. However the higher education provider must be able to demonstrate to the *Department* that the fee proposed will recover at least the full cost of providing the course in accordance with paragraph 6.5.1(a).
- (d) For the purposes of paragraph 6.5.1(b), the minimum indicative course fee for the relevant category of course is:
- (i) where, in accordance with subparagraph 6.5.1(a)(ii), the capital component of the fee is not taken into account because the necessary capital facilities are provided by a third party, the amount in the column headed Total without capital component; or
 - (ii) in all other circumstances, the amount in the column headed Total with capital component.

6.10 CIRCUMSTANCES IN WHICH THE REQUIREMENTS FOR DETERMINING FEES FOR OVERSEAS STUDENTS MAY NOT APPLY

6.10.1 A higher education provider is not required to comply with the requirements of paragraph 6.5.1 when determining the fee for the following classes of overseas students:

- (a) overseas students undertaking study in Australia as part of a formal exchange program; and
- (b) overseas students undertaking study in Australia towards a research Masters degree or a research Doctoral degree who have been awarded a scholarship for that study on the basis of merit following a competitive application process.

- 6.10.5 For the purposes of paragraph 6.10.1(a), a formal exchange program is a program established under a formal agreement between an Australian higher education provider and an overseas higher education institution [“overseas institution”] that provides for:
- (a) students of the Australian higher education provider to undertake study at the overseas institution, where the study at the overseas institution contributes to the requirements of a course of study being undertaken by the students with the Australian higher education provider;
 - (b) students of the overseas institution to undertake study at the Australian higher education provider, where the study at the Australian higher education provider contributes to the requirements of a course of study being undertaken by the students with the overseas institution;
 - (c) the exchange of students between the Australian higher education provider and the overseas institution to be reciprocal over time;
 - (d) all students of the Australian higher education provider undertaking study in accordance with paragraph 6.10.5(a) are charged student contribution amounts and tuition fees in accordance with the Act and are not charged fees at the overseas institution; and
 - (e) all students of the overseas institution undertaking study in accordance with paragraph 6.10.5(b) are charged fees in accordance with the practices of that overseas institution and are not charged fees at the Australian higher education provider.

6.15 MINIMUM INDICATIVE COURSE FEES

6.15.1 The schedule of minimum indicative course fees for 2012 is as follows:

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Total with capital component	4979 / 084	4979
Total without capital component	4979 / 084	4979

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Acts Amendment (Public Service) Act 1987 s. 32

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Sentencing (Consequential Provisions) Act 1995 Pt. 48

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Local Government (Consequential Amendments) Act 1996 s. 4

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2. Education Amendment Act 1996 s. 16(7)

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Reprinted as at 14 Nov 1996

<u>3. Trustees Amendment Act 1997 s. 18</u>	Science (lab-based), Paramedical, Engineering, Pharmacy, Agriculture 1997/001	\$ 1 1 2 6 4 4 9 9 5 0 4 4 6 6 - 4 A 4 a n y 4 - 9 1 9 8 7 8 (6 7 e e s: 2 a n d G a z et to 4 0 4 4 n 4 9 9 7 p: 2 6 6 4)
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~~Acts Amendment (Land Administration) Act 1997 Pt. 39~~

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E2. School Education Act 1999 s. 247	Law, Economics, Business, Humanities, Maths/Statistics, Social Science, Education, Computing, Architecture, Design, Nursing, Arts, Science (non-lab-based)1999/036	\$9,2422 Nov 1999	\$9,7411 Jan 2001 (see s. 2 and Gazette 29 Dec 2000 p. 7904)
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Environmental Protection Amendment Act 2003 s. 68(4)

2003/054

20 Oct 2003

19 Nov 2003 (see s. 2 and Gazette 18 Nov 2003 p. 4723)

E3. Local Government Amendment Act 2004 s. 13	Science (lab-based), Paramedical, Engineering, Pharmacy, Agriculture2004/049	\$13,95412 Nov 2004	\$14,6331 Apr 2005 (see s. 2 and Gazette 31 Mar 2005 p. 1029)
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Courts Legislation Amendment and Repeal Act 2004 s. 141

2004/059

23 Nov 2004

1 May 2005 (see s. 2 and Gazette 31 Dec 2004 p. 7128)

State Administrative Tribunal (Conferral of Jurisdiction) Amendment and Repeal Act 2004 Pt. 2 Div. 74

2004/055

24 Nov 2004

1 Jan 2005 (see s. 2 and Gazette 31 Dec 2004 p. 7130)

Criminal Procedure and Appeals (Consequential and Other Provisions) Act 2004 s. 78 & 80

2004/084

16 Dec 2004

2 May 2005 (see s. 2 and Gazette 31 Dec 2004 p. 7129 (correction in Gazette 7 Jan 2005 p. 53))

Machinery of Government (Miscellaneous Amendments) Act 2006 Pt. 7 Div. 3

2006/028

26 Jun 2006

1 Jul 2006 (see s. 2 and Gazette 27 Jun 2006 p. 2347)

Reprint 4 as at 25 Aug 2006

<i>Financial Legislation Amendment and Repeal Act 2006</i> Sch. 1 cl. 100	2006/077	21 Dec 2006	1 Feb 2007 (see s. 2(1) and <i>Gazette</i> 19 Jan 2007 p. 137)
<i>Statutes (Repeals and Miscellaneous Amendments) Act 2009</i> s. 86	2009/008	21 May 2009	22 May 2009 (see s. 2(b))
<i>Acts Amendment (Bankruptcy) Act 2009</i> s. 52	2009/018	16 Sep 2009	17 Sep 2009 (see s. 2(b))
<i>Standardisation of Formatting Act 2010</i> s. 4	2010/019	28 Jun 2010	11 Sep 2010 (see s. 2(b) and <i>Gazette</i> 10 Sep 2010 p. 4341)
<i>Public Sector Reform Act 2010</i> s. 89	2010/039	1 Oct 2010	1 Dec 2010 (see s. 2(b) and <i>Gazette</i> 5 Nov 2010 p. 5563)
<i>Industrial Legislation Amendment Act 2011</i> Pt. 6	2011/053	11 Nov 2011	1 Apr 2012 (see s. 2(b) and <i>Gazette</i> 16 Mar 2012 p. 1246)
Reprint 5 as at 11 May 2012			
<i>Fire and Emergency Services Legislation Amendment Act 2012</i> Pt. 7 Div. 8	2012/022	29 Aug 2012	1 Nov 2012 (see s. 2(b) and <i>Gazette</i> 31 Oct 2012 p. 5255)

<i>Litter Amendment Act 2012</i>	2012/030	3-Sep-2012	s. 1 & 2: 3-Sep-20 12 (see s. 2(a)); Act other than s. 1 & 2: 21-Nov- 2012 (see s. 2(b) and <i>Gazette</i> 20-Nov- 2012 p. 5685)
Reprint 6 as at 20 Mar 2015			
<i>Aquatic Resources Management Act 2016 s. 367</i>	2016/053	29-Nov-2016	To be proclai med (see s. 2(b))
<i>COVID-19 Response and Economic Recovery Omnibus Act 2020 Pt. 5 Div. 2 Subdiv. 2</i>	2020/034	11-Sep-2020	12-Sep-2 020 (see s. 2(b))
<i>Directors' Liability Reform Act 2023 Pt. 3 Div. 37</i>	2023/009	4-Apr-2023	5-Apr-2 023 (see s. 2(j))

6.15.5 Amounts in paragraph 6.15.1 will be indexed each year after 2012 in accordance with the method of indexation set out in Division 198 of Part 5-6 of Chapter 5 of the Act.

CHAPTER 7 FEES FOR GOODS AND SERVICES INCIDENTAL TO STUDIES

7.1 PURPOSE

7.1.1 The purpose of this chapter is to specify the criteria for determining whether a fee is of a kind referred to in paragraph 19-102(3)(f) of the Act.

7.5 FEE OF A KIND THAT IS INCIDENTAL TO STUDIES THAT MAY BE UNDERTAKEN WITH A HIGHER EDUCATION PROVIDER

7.5.1 Provided that its payment is in accordance with the Act, a fee is of a kind that is incidental to studies that may be undertaken with a higher education provider if it falls into any one or more of the following categories:

- (a) It is a charge for a good or service that is not essential to the course of study.
- (b) It is a charge for an alternative form, or alternative forms, of access to a good or service that is an essential component of the course of study but is otherwise made readily available at no additional fee by the higher education provider.
- (c) It is a charge for an essential good or service that the student has the choice of acquiring from a supplier other than the higher education provider and is for:
 - (i) equipment or items which become the physical property of the student and are not consumed during the course of study; or
 - (ii) food, transport and accommodation costs associated with the provision of field trips that form part of the course of study.
- (d) It is a fine or a penalty, provided it is imposed by the higher education provider principally as a disincentive and not in order to raise revenue or cover administrative costs.

CHAPTER 8 QUALITY, ACCOUNTABILITY AND OTHER ADMINISTRATIVE REQUIREMENTS

8.1 Purpose

8.1.1 The purpose of this chapter is to set out additional quality, accountability and other administrative requirements that apply to higher education providers.

8.2 Financial statements

8.2.1 This section is made for the purposes of paragraph 19-10(2)(ab) of the *Act* and only applies to higher education providers approved under section 16-25 of the *Act*.

8.2.5 If the higher education provider had total revenue of \$10 million or more for the previous annual financial reporting period, the financial statement for the annual financial reporting period must:

- (a) be a general purpose financial statement that complies with the applicable *accounting standards*; and
- (b) be prepared by a qualified accountant in accordance with the applicable *accounting standards*; and
- (c) include a declaration by the qualified accountant that the provider has, as at the date of the declaration, complied with all statutory obligations relating to the payment of:
 - (i) Commonwealth, State and Territory taxes; and
 - (ii) the superannuation guarantee charge in relation to employees of the provider.

8.2.10 If the higher education provider had total revenue of less than \$10 million for the previous annual financial reporting period, the financial statement for the annual financial reporting period must be a special purpose financial statement that complies with the following *accounting standards*:

- (a) AASB 101, Presentation of Financial Statements;
- (b) AASB 107, Statement of Cash Flows;
- (c) AASB 108, Accounting Policies, Changes in Accounting Estimates and Errors;
- (d) AASB 1048, Interpretation of Standards;
- (e) AASB 1054, Australian Additional Disclosures.

8.2.15 If the higher education provider is part of a consolidated entity, the financial statement for the annual financial reporting period must be accompanied by:

- (a) a copy of the most recent consolidated financial statements for the entity prepared in accordance with applicable *accounting standards*; and
- (b) such additional information related to the consolidated entity as is determined, in writing, by the Minister.

8.2.20 In this section:

consolidated entity has the same meaning as in the *Corporations Act 2001*.

general purpose financial statement has the meaning given by the *accounting standards*.

qualified accountant has the same meaning as in the *Corporations Act 2001*.

special purpose financial statement means a financial statement that is not a general purpose financial statement.

8.3 Financial viability

8.3.1 For the purposes of paragraph 19-12(b) of the *Act*, the Minister must have regard to the following matters when determining whether a higher education provider approved under section 16-25 of the *Act* is financially viable, and likely to remain so:

- (a) the provider generates sufficient income to meet operating payments, debt commitments and, where applicable, to allow growth while delivering quality higher education;
- (b) the provider's total assets exceed the provider's total liabilities (the provider has a positive equity position), and there is no evidence to suggest that this might change;
- (c) if the provider is not a charitable or not-for-profit organisation registered with the Australian Charities and Not-for-profits Commission, and has been operating for 3 years or more—the provider has operated at a profit for at least 2 of the 3 most recent financial years for the provider;
- (d) if the provider has at least 100 enrolments in courses of study that lead to higher education awards—at least 20% of the provider's revenue for the previous financial year came from sources other than payments that gave rise to FEE-HELP debts;
- (e) the provider has a net positive cash position from operating activities (determined in accordance with the *accounting standards*);
- (f) the provider is not providing guarantees or loans that could have a material effect on the provider's finances;
- (g) the provider is not providing its assets as security other than under a commercial loan arrangement with an authorised deposit-taking institution (within the meaning of the *Banking Act 1959*).

8.4 Offering certain inducements

8.4.1 The following benefits are specified for the purposes of subsection 19-36A(2) of the *Act*:

- (a) the content and quality of the unit of study;
- (b) the amount of the tuition fees for the unit of study;
- (c) the availability of FEE-HELP assistance and HECS-HELP assistance for the unit of study;
- (d) marketing merchandise up to the total value of \$30 per person;
- (e) the offering of money in the form of scholarships or bursaries.

8.5 Use of third party contact lists

8.5.1 This section is made for the purposes of subsection 19-36C(3) of the *Act*.

8.5.5 Subsection 19-36C(2) of the *Act* does not apply if the student has given express consent to being contacted by the higher education provider.

8.5.10 However, subject to section 8.5.15, a student cannot be taken to have provided express consent unless:

- (a) information in the request for consent was presented clearly, and set out the specific purpose for which the student's personal information would be used if consent were given; and

- (b) the request was prominent; and
- (c) the student was able to give consent in a separate optional tick box from other consents; and
- (d) the request was not a required field to be answered in order for a person to submit other information; and
- (e) the request did not include a default tick for consent; and
- (f) the request named the provider; and
- (g) the request detailed any referral fee or other fee that would be paid to the person who made the request and any other benefit that would be provided to the person who made the request.

8.5.15 The student is taken to have provided express consent if the student initiates contact with a third party for the purpose of:

- (a) giving information relating to education and training to the provider; or
- (b) obtaining information relating to higher education from the provider.

8.6 Keeping records

8.6.1 This section is made for the purposes of section 19-72 of the Act.

8.6.5 A higher education provider must keep records relating to:

- (a) how the provider assessed a student as academically suited to undertake a unit of study before enrolling the student in the unit of study being undertaken as part of a course of study; and
- (b) if the provider is satisfied that special circumstances apply to a student for the purposes of section 104-1A of the Act—the grounds on which the provider is so satisfied; and
- (c) if the provider determines that undertaking a unit will not impose an unreasonable study load on a person for the purposes of subsections 36-12(2) and 104-1AA(2)—the grounds on which the provider made such a determination.

Note 1: The requirement to undertake the assessment mentioned in paragraph (a) is imposed under section 19-42 of the Act.

Note 2: For when special circumstances apply to a person, see section 104-30 of the Act.

8.6.10 The records must be kept in a manner so that they can be readily provided upon request to the student concerned, the Minister or the Secretary.

8.6.15 A record required to be kept by a provider under this section must be kept by the provider for the period of 7 years, starting from when the record was made by the provider.

8.7 Publishing information

8.7.1 This section is made for the purposes of section 19-73 of the Act.

8.7.5 A higher education provider must publish the following information in relation to each unit of study offered by the provider:

- (a) the mode of delivery of the unit of study;
- (b) whether the unit of study will be delivered by the provider or by a third party;
- (c) whether FEE-HELP assistance or HECS-HELP assistance is available for the unit of study and whether a person can be a Commonwealth supported student in relation to the unit of study;

(d) whether there are any limits or conditions on the FEE-HELP assistance or HECS-HELP assistance available for the unit of study imposed on the provider's approval as a higher education provider.

8.7.10 The information must be published by the provider prominently on its website, and in a manner that is easily accessible without provision of login or contact information.

8.7.15 The information must:

(a) be published before the earliest day for enrolment in the unit of study; and

(b) must remain published at least until the end of the period in which the unit can be undertaken.

8.8 Withdrawal from units of study

8.8.1 This section is made for the purposes of section 169-17 of the Act.

8.8.5 A higher education provider must have processes and procedures that include:

(a) procedures for a student to withdraw from a unit of study or a course of study; and

(b) a procedure for a student to enrol in a unit of study that was part of a course of study with the provider in circumstances where the student had earlier withdrawn from a unit of study of that course undertaken with the provider.

8.8.10 The procedures for a student to withdraw from a unit of study or a course of study, before a census date for the unit or course, must not involve financial, administrative or other barriers to the withdrawal.

8.8.15 If a student withdraws from a unit of study or a course of study, the provider must not, after the withdrawal, enrol the student in a unit of study or course of study without the written permission of the student (which must be given after the withdrawal).

CHAPTER 9 DETERMINING WHETHER STUDENTS ARE GENUINE STUDENTS

9.1 Purpose

9.1.1 The purpose of this chapter is to specify matters to be taken into account in determining whether students undertaking units of study provided by higher education providers are genuine students.

9.2 Genuine student

9.2.1 For the purposes of subsections 36-5(6) and 104-1(1AB) of the *Act*, in determining whether a student is a genuine student in relation to a unit of study being undertaken as part of a course of study, regard may be had to the following matters:

- (a) whether the student is reasonably engaged in the course;
- (b) whether the student has been provided with information about the requirements for the course, and the cost and duration of the course;
- (c) whether the student has satisfied course requirements for the course or participated in assessment activities for the course;
- (d) if the course is an online course—the number of occasions on which the student has logged in to the course is not insignificant;
- (e) whether the student has provided up-to-date contact details that enable the *Department* to contact the student to verify the student's enrolment in the course;
- (f) if the student is enrolled in another course—the number of the enrolments and associated course loads would not make successful completion of a course by the student impossible or highly improbable.

Endnotes

Endnote 1—About the endnotes

The endnotes provide information about this compilation and the compiled law.

The following endnotes are included in every compilation:

Endnote 1—About the endnotes

Endnote 2—Abbreviation key

Endnote 3—Legislation history

Endnote 4—Amendment history

Abbreviation key—Endnote 2

The abbreviation key sets out abbreviations that may be used in the endnotes.

Legislation history and amendment history—Endnotes 3 and 4

Amending laws are annotated in the legislation history and amendment history.

The legislation history in endnote 3 provides information about each law that has amended (or will amend) the compiled law. The information includes commencement details for amending laws and details of any application, saving or transitional provisions that are not included in this compilation.

The amendment history in endnote 4 provides information about amendments at the provision (generally section or equivalent) level. It also includes information about any provision of the compiled law that has been repealed in accordance with a provision of the law.

Misdescribed amendments

A misdescribed amendment is an amendment that does not accurately describe the amendment to be made. If, despite the misdescription, the amendment can be given effect as intended, the amendment is incorporated into the compiled law and the abbreviation “(md)” added to the details of the amendment included in the amendment history.

If a misdescribed amendment cannot be given effect as intended, the abbreviation “(md not incorp)” is added to the details of the amendment included in the amendment history.

Endnote 2—Abbreviation keyad = added or insertedam = amendedamdt = amendmentc = clause(s)C[x] = Compilation No. xCh = Chapter(s)def = definition(s)Dict = Dictionarydisallowed = disallowed by ParliamentDiv = Division(s)exp = expires/expired or ceases/ceased to have effectF = Federal Register of Legislationgaz = gazetteLA = Legislation Act 2003LIA = Legislative Instruments Act 2003(md) = misdescribed amendment can be given effect(md not incorp) = misdescribed amendment cannot be given effectmod = modified/modificationNo. = Number(s)o = order(s)Ord = Ordinanceorig = originalpar = paragraph(s)/subparagraph(s)/sub-subparagraph(s)pres = presentprev = previous(prev...) = previouslyPt = Part(s)r = regulation(s)/rule(s)reloc = relocatedrenum = renumberedrep = repealedrs = repealed and substituteds = section(s)/subsection(s)Sch = Schedule(s)Sdiv = Subdivision(s)SLI = Select Legislative InstrumentSR = Statutory RulesSub-Ch = Sub-Chapter(s)SubPt = Subpart(s)underlining = whole or part not commenced or to be commenced

Endnote 3 – Legislation history

Endnote 3—Legislation history

<u>Title</u>	<u>Registration number</u>	<u>Date of registration</u>	<u>Date of commencement</u>	<u>Application, saving or transitional provisions</u>
<u><i>Higher Education Provider Guidelines 2012</i></u>	<u>F2012L02136</u>	<u>1 November 2012</u>	<u>2 November 2012</u>	<u>TRANSITIONAL ARRANGEMENTS</u> The revocation of the Former Guidelines does not affect the validity of a payment or decision made under those guidelines. A decision made under the Former Guidelines is taken to continue to have effect as if it were made under the <i>Higher Education Provider Guidelines 2012</i>.
<u><i>Amendment No. 1 to the Higher Education Provider Guidelines 2012</i></u>	<u>F2013L01508</u>	<u>5 August 2013</u>	<u>6 August 2013</u>	
<u><i>Higher Education Provider Amendment (Tuition Protection and Other Measures) Guidelines 2019</i></u>	<u>F2019L01699</u>	<u>23 December 2019</u>	Schedule 1 (items 1–3, 5): <u>24 December 2019 (s 2(1) item 2)</u> Schedule 1 (item 4) and Schedule 2: (other than section 2.10 of item 3): <u>1 January 2020 (s 2(1) items 3, 4)</u> Schedule 2 section 2.10 of item 3: <u>1 January 2020 (s 2(1) item 5)</u>	—

<u>Higher Education Provider Amendment (AAT Review) Guidelines 2020</u>	<u>F2020L00754</u>	<u>18 June 2020</u>	<u>19 June 2020</u>
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<u>Higher Education Provider Amendment (Levy Waiver) Guidelines 2020</u>	<u>F2020L01332</u>	<u>21 October 2020</u>	<u>22 October 2020</u>
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<u>Higher Education Provider Amendment (Tuition Protection and Other Measures) Guidelines 2020</u>	<u>F2020L01633</u>	<u>17 December 2020</u>	<u>1 January 2021</u>
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**APPLICATION
PROVISION**

The amendments made to
repeal the definition of
“Affected Student” in
paragraph 1.5.10 and the
repeal and substitution of
Chapter 2 of the *Higher
Education Provider
Guidelines 2012* apply in
relation to provider
defaults that occur on or
after the commencement
of this instrument.

<u>Higher Education Provider Amendment (Levy Waiver) Guidelines 2021</u>	<u>F2021L01890</u>	<u>23 December 2021</u>	<u>24 December 2021</u>
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Endnote 4—Amendment History

Provision affected	How affected
Paragraph (ii)	am F2020L01633
Paragraph (iii)	rep LIA s 48D
Paragraph (iv)	rep LIA s 48C
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Paragraph 2.5.20.	ad F2020L01633
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Paragraph 2.10.5.	rs F2019L01699; rep F2020L01633		
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Paragraph 2.10.15A.	ad F2020L01332; rep F2020L01633		
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Paragraph 2.10.40.	ad F2020L00754; am F2020L01332; rep F2020L01633		
Paragraph 2.10.40.	ad F2019L01699 renum F2020L00754; rep F2020L01633		
Paragraph 2.10.45 (prev Paragraph 2.10.40).....	rep F2020L01633		
Paragraph 2.10.45A.	ad F2020L01332; rep F2020L01633		
Section 2.15.	rs F2019L01699; rs F2020L01633		
Paragraph 2.15.1.	rs F2019L01699; am F2020L00754; rs F2020L01633		
Paragraph 2.15.5.	rs F2019L01699; rs F2020L01633		
Paragraph 2.15.10.	rs F2019L01699; rs F2020L01633		
Paragraph 2.15.15.	rs F2019L01699; rep F2020L01633		
Paragraph 2.15.20.	rep F2019L01699; rep F2020L01633		
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Paragraph 2.20.15.	rep F2019L01699; rep F2020L01633		
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Paragraph 2.25.5.	rs F2019L01699; rep F2020L01633		
Paragraph 2.25.10.	rs F2019L01699; rep F2020L01633		
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Paragraph 2.40.20.	ad F2020L01633		
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Paragraph 8.2.5.	ad F2019L01699		
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